DECODE UPSC with Mounika

Reel: When does your 24-hour arrest clock start?

Reading script · on camera · English + తెలుగు · upload Tue 10 Nov, 6 PM

Script

Police pick you up at 10 in the morning, but write down your arrest only at night. When does your 24-hour clock start?

Supreme Court ఇప్పుడే చెప్పింది!

Let’s decode.

Article 22, clause 2, of our Constitution says an arrested person must be produced before the nearest magistrate within 24 hours, leaving out only the travel time.

In a drug case from Tripura, the police held four people for searches and paperwork, and recorded the arrest much later. On November 5, the Supreme Court said there is no difference between detention and arrest: the clock starts the moment your liberty is curtailed, and it ordered the four released.

It also overruled the Orissa, Kerala and Madras High Courts, which had allowed such time to be left out.

అంటే, informal detention కి ఇక chance లేదు.

Prelims trap one: only the journey to the magistrate is excluded. Trap two: under Article 22, clause 3, these safeguards do not apply to an enemy alien or to a person held under preventive detention.

ఇది గుర్తుపెట్టుకోండి!

Mains question: is the first hour of custody the real test of personal liberty?

మీ answer comments లో రాయండి, and follow for one exam trap every day!

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Title:

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Arrested? When Does Your 24-Hour Clock Start? #UPSC #Shorts
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Description:

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The Supreme Court (5 November 2026) says the 24-hour limit in Article 22(2) starts at
detention, not when the arrest is written down. Here is everything UPSC can ask.

📌 Article 22(2): produce before the nearest magistrate within 24 hours; only the travel
time is excluded
📌 The case: a Tripura drug case; 4 accused released; Orissa, Kerala and Madras High
Court views overruled
⚠️ Prelims trap: Article 22(3): these safeguards do not apply to enemy aliens or to
preventive detention
✍️ Mains: is the first hour of custody the real test of personal liberty? Write your
answer in the comments!

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#UPSC #UPSC2027 #Polity #Article22 #SupremeCourt #FundamentalRights #APPSC #TGPSC #Group1 #Telugu #Shorts

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🧠 Quick test: With reference to Article 22(2), which one is correct?
(a) The 24 hours start when the arrest is formally recorded.
(b) The 24 hours start at detention, excluding the journey to the magistrate.
(c) The safeguards apply equally to preventive detention.
(d) The safeguards apply to citizens only.
Comment your answer! ✅ Answer: (b). Article 22(3) excludes preventive detention and enemy aliens.